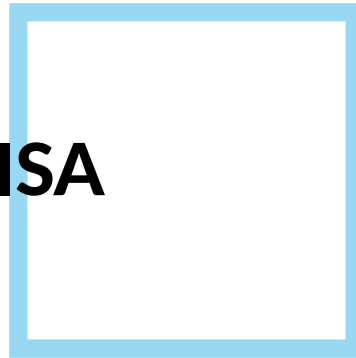


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TEMPORARY WORK - CREATIVE WORKER VISA



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TEMPORARY WORK - CREATIVE WORKER VISA

The UK Creative Worker visa allows individuals who have been offered short-term work within the UK's creative sector to work in the UK for up to 12 months.

A creative worker is someone who can make a unique contribution to the UK's creative industries, for example, as an actor, dancer, musician, entertainer, fashion model or film crew. Technical or support staff ('entourage') may accompany eligible creative workers.

The Creative Worker visa is not a route to settlement, but applicants can extend their stay up to a maximum of two years with the same employer. Creative Worker visa holders can also be joined by a dependent partner and children under the age of 18.

Other UK visa routes for artists and entertainers include the **Creative Visit visa** (<https://immigrationbarrister.co.uk/personal-immigration/short-stay-visit-visas/creative-visit-visa/>), the **Permitted Paid Engagement Visit visa** (<https://immigrationbarrister.co.uk/personal-immigration/short-stay-visit-visas/permitted-paid-engagement-visit-visa/>) and the **Global Talent visa** (<https://immigrationbarrister.co.uk/personal-immigration/global-talent-visas/global-talent-visa/>). Our immigration barristers in Covent Garden would be pleased to advise you on your options.

Requirements for a UK Creative Worker Visa

In order to qualify for a Creative Worker visa, you will need to satisfy UK Visas and Immigration that:

- You have an offer of a job as a creative worker from a sponsor that holds a valid Temporary Work – Creative Worker sponsor licence (which requires a valid Certificate of Sponsorship)

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Sponsorship for the role you wish to undertake);

- You will be paid the minimum salary as set by Equity, PACT or BEA (<https://www.google.co.uk/search?q=richmond+chambers+in>);
- You genuinely intend, and are able, to undertake the role for which you are being sponsored and do not intend to undertake other employment;
- You have personal savings to support yourself in the UK;
- Your application does not fall for refusal under the general grounds for refusal;
- You have provided a valid TB certificate, if required;
- You have obtained an Electronic Travel Authorisation, if required.

The exact requirements you will need to satisfy in order to qualify for a Creative Worker visa may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Creative Worker visa application with one of our immigration barristers, contact our immigration lawyers in Covent Garden, London on 0203 617 9173 or complete our enquiry form below.

Creative Worker Visa Certificate of Sponsorship (CoS) Requirement

In order to obtain a Creative Worker Visa you will need to have a valid Certificate of Sponsorship issued by a Home Office approved sponsor for the job you are applying to undertake in the UK. Your sponsor will need to hold a valid Temporary Work – Creative Worker sponsor licence.

Your sponsor will be operating in the creative sector. Examples include, but are not limited to: a national arts body, an events organiser, a producer, a venue, an agent, a promoter or promotion company, a production company or a media organisation. Your sponsor may or may not be your direct employer.

When your sponsor issues a Certificate of Sponsorship they will confirm that:

- You will comply with your relevant Creative Worker Code of Practice where one exists for your occupation; or
- Your role appeared in the shortage occupation list; or
- Before assigning the Certificate of Sponsorship, your sponsor took into account the needs of the resident labour market and was satisfied that the work could not be carried out by a settled worker

Sponsors in the creative sector can issue certificates of sponsorship to individual creative workers. They can also issue group certificates of sponsorship for a performer and their entourage. An entourage can include people whose work is directly related to the employment of an entertainer, cultural artist or a dramatic production. Members of an entourage must have proven technical or specialist skills.

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Unless you have been in the UK with a valid visa for at least 12 months as a sponsored person or as a young person, your sponsor must agree to cover your costs during your first month in the UK (and this is confirmed on your Certificate of Sponsorship) you will need to have at least £1,270 in your bank account, held for at least 28 days, ending not more than 31 days before the date of your Creative Worker visa application.

The Temporary Work – Creative Worker visa has no English language requirement.

If your Creative Worker visa application is successful you will be permitted to enter and remain in the UK for either 12 months, or the time stated on your Certificate of Sponsorship plus up to 14 days before and after the period of leave granted, whichever is shorter.

Creative Workers who wish to continue working for the same sponsor may apply to extend their Creative Worker visa for up to a maximum of 24 months. Creative workers who wish to change employers may only stay in the UK for a maximum of 12 months.

Those who entered the UK for up to 3 months under the Creative Worker Visa Border Concession (see further below) cannot extend their stay in the UK on the Creative Worker route.

The Creative Worker visa is a temporary work route and not a route to settlement. However, it may be possible to switch into another immigration route which can lead to indefinite leave to remain.

Switching into the Creative Worker visa route from within the UK is not normally permitted.

There is a very limited exception for individuals who, before entering the UK, were assigned a valid CoS on the Creative Worker route on or before 8 November 2022 and who subsequently had permission as a Standard Visitor undertaking permitted creative activities or as a Permitted Paid Engagement Visitor.

Conditions of Stay

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If your application for a Creative Worker visa is successful you will be able to work for your sponsor in the job described on your Certificate of Sponsorship. [. \(https://www.google.co.uk](https://www.google.co.uk)

You will also be able to have a second job in the same sector and at the same level as your main job for up to 20 hours per week and do a job on the Skilled Worker shortage occupation list for up to 20 hours per week.

Temporary Work – Creative Worker Visa Border Concession

If you are not a national or citizen of a country or territorial entity listed in Immigration Rules Appendix Visitor: Visa national list (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-visitor-visa-national-list>) (i.e. you are an EU, EEA and Swiss citizen or other non-visa national), you have a valid Certificate of Sponsorship from an approved sponsor for the Creative Worker route and the total length of your paid engagement or engagements in the UK will be 3 months or less then you may qualify to travel to the UK without a visa and instead ask for permission to enter when you arrive at the UK border under the Temporary Work – Creative Worker visa concession.

UK Creative Worker Visa Processing Times

Most UK Creative Worker Visa applications are decided within 3 weeks. It may be possible to secure a faster decision on a Creative Worker visa application if the visa application centre offers a priority service.

Most applications from Creative Workers to extend their stay are decided within 8 weeks. You can also secure a decision within 5 days if you apply via the Priority Service or by the end of the next working day if you apply via the Super Priority Service.

Applications by Dependents

If you are granted entry clearance or leave to remain as a Creative Worker you can be joined or accompanied by a dependent partner and dependent children under the age of 18.

UK Visa Refusals

If your application for a Temporary Work – Creative Worker visa is refused, you may be able to make a fresh application or apply for **Administrative Review**

(<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/uk-visa-administrative-review/>) of the refusal decision.

How Our Immigration Barristers Can Help

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Our team of immigration barristers has experience in assisting creative workers and their entourage across a variety of disciplines. Our barristers can help you to ensure that you meet your start date and that your career progression will fit your immigration goals.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to artists, dancers, musicians, entertainers and models as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for Creative Visit Visas



Applications for Permitted Paid Engagement Visas



Applications for Global Talent Visas



Applications for Skilled Worker Visas



Fresh applications, Administrative reviews and Judicial reviews for Temporary Workers



WHAT CAN WE HELP YOU WITH?

To discuss your Temporary Work - Creative Worker Visa application with one of our immigration barristers, contact our Creative Worker Visa lawyers on 0203 617 9173 or complete our enquiry form below.

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